



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 28, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11107
(FOURTEENTH REVISION)

EXPIRATION DATE: 2029-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Pacific Scientific Energetic Materials Company
(California) LLC
Hollister, CA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-primary, non-forbidden explosive articles which have not been examined and approved to be shipped as Division 1.1 devices under the conditions specified below. This special permit provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(e)(3) in that the explosive is not transported in a motor vehicle operated by the owner of the explosive when being transported between the location the explosive is produced and the N-Ray facility in Fitchburg, WI; and § 173.56(e)(4) in that when transported in a motor vehicle operated by the owner of the explosive, the explosives are not accompanied by a person, in addition to the operator of the motor vehicle, who is qualified by training and experience to handle the explosive, as specified herein.

Tracking Number: 2024044112

5. BASIS: This special permit is based on the application of Pacific Scientific Energetic Materials Company (California) LLC, dated February 3, 2025, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Articles, explosive, n.o.s.*	1.1D	UN0463	N/A

*Articles must not be a primary explosive or a forbidden explosive.

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The explosive devices must be mounted on an aluminum tray using tape, screws, and/or clamps to prevent any movement during transportation. The maximum tray size must be 120 inches long and 24 inches wide. The total weight of explosive composition in the devices on any tray may not exceed 50 grams. Each loaded tray must be placed in an anti-static plastic bag. The bagged trays must be placed in a UN 4C1 or UN 4C2 wooden box with cushioning between each tray. The weight of explosive composition in one box may not exceed 100 grams. The trays must be cushioned in the box to prevent significant movement. The aggregate net explosive weight per shipment may not exceed 2.27 kg.

b. OPERATIONAL CONTROLS FOR TRANSPORTATION BY DEDICATED CARRIER OPERATED BY A PERSON OTHER THAN THE OWNER OF THE EXPLOSIVE:

- (1) Transportation must be conducted by a dedicated carrier that holds a valid Hazardous Materials Safety Permit issued by the Federal Motor Carrier Safety Administration. The vehicle may not contain materials offered for transportation by a company other than the grantee.
- (2) The use of this special permit is limited to transportation of the devices between the place where they are produced and the N-Ray testing facility in Fitchburg, WI.
- (3) All drivers must be trained on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704

and informed of the specific nature of the materials to be transported. All vehicles traveling to and from the Fitchberg, WI location are required to be dual driver. Both drivers must have received the required training and understand the hazards associated with the material being transported.

(4) While in transportation, the cargo carrying portion of the vehicle must be locked and secured at all times.

(5) Transportation must be completed in the shortest timeframe possible. To the extent possible, transportation must be conducted so as to avoid rush-hour traffic and avoid high density traffic.

(6) The requirements of 49 CFR 173.56(e)(3) do not apply.

(7) No more than two shipments (i.e., transportation from the location where the explosives are produced to an N-ray facility and the return transportation from the N-ray facility to the location the explosives are produced) per week are authorized.

c. OPERATIONAL CONTROLS FOR TRANSPORTATION ON A MOTOR VEHICLE OPERATED BY THE OWNER OF THE EXPLOSIVE:

(1) Transportation of packages described in this special permit must be in a motor vehicle operated by Pacific Scientific Energetic Materials Company (California) LLC Operations.

(2) The use of this special permit is limited to transportation of the devices to or from the place where they are produced and the N-Ray testing facility.

(3) All drivers must be trained on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704 and informed of the specific nature of the materials to be transported.

(4) While in transportation, the cargo carrying portion of the vehicle must be locked and secured at all times.

(5) Transportation must be completed in the shortest timeframe possible. To the extent possible, transportation must be conducted so as to avoid rush-hour traffic and avoid high density traffic.

(6) The requirements of 49 CFR 173.56(e)(4) do not apply.

8. SPECIAL PROVISIONS:

- a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- b. Training materials and training records must be kept on file by the grantee.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Dan B.", is written over a faint, circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG